AS TO THE ADMISSIBILITY OF

Application No. 27608/95
by Movement for Democratic Kingdom
against Bulgaria

The European Commission of Human Rights (First Chamber) sitting in private on 29 November 1995, the following members being present:

Mr. C.L. ROZAKIS, President
Mrs. J. LIDDY
MM. E. BUSUTTIL
A.S. GÖZÜBÜYÜK
A. WEITZEL
M.P. PELLONPÄÄ
B. MARXER
B. CONFORTI
N. BRATZA
I. BÉKÉS
E. KONSTANTINOV
G. RESS
A. PERENIC
C. BÎRSAN
K. HERNDL

Mrs. M.F. BUQUICCHIO, Secretary to the Chamber

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 13 October 1994 by Movement for Democratic Kingdom against Bulgaria and registered on 13 June 1995 under file No. 27608/95;

Having regard to the report provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The facts of the case as submitted by the applicant party may be summarised as follows.

Particular circumstances of the case

The applicant is a political party founded on 10 December 1991. Before the Commission it is represented by its chairman, Mr. Velko Kumanov, a Bulgarian national born in 1913 and residing in Sofia.

On 15 December 1991 the applicant party submitted to the Sofia Regional Court (Sofiiski gradski sad) a petition for registration under the Act on Political Parties. The petition was accompanied by a list of the founding members which contained 68 names, a list of the persons elected as party leaders, a document entitled statute of the party, and 68 declarations of the founders stating that they accept the statute. The applicant party has not substantiated whether it sought legal advice in the preparation of its founding documents.

On 28 February 1992 the Court held a hearing on the matter with the participation of a prosecutor. At the hearing the prosecutor observed that the statute of the party was not in conformity with the requirements of Section 8 of the Act on Political Parties (see below

Relevant domestic law). Thus the aims of the political party, the requirements for membership and the managing body which could admit new members were not stated. Also, the composition, the convention procedure and the competence of the general assembly of the party and its other organs were unclear.

After the case was adjourned the applicant party submitted new versions of the statute and the minutes from the founding meeting, accompanied by a list of 115 founding members. These documents were again dated 10 December 1991, i.e. the founding date of the party.

The Court held a second hearing on the matter. The Court informed ex officio the applicant party that it was necessary to submit proof that the amendments in the statute had been approved by a duly convened general assembly of the party, as this had been the pertinent procedure under the statute adopted by the founders of the party on 10 December 1991.

The members of the applicant party's leadership, who apparently were not legally represented, replied that they had submitted all necessary documents. They also indicated that the new version of the statute had been signed by 115 individuals between 2 and 8 March 1992.

On 17 April 1992 the Court dismissed the petition for registration stating that the applicant party had not complied with the instructions of the Court to submit proof of "convening a general assembly to adopt the amended statute". The judgment read further:

"... the initial version of the statute does not comply with the requirements of Section 8 of the Act on Political Parties. The amended version, submitted later, has not been adopted by the founders as provided for under Section 7 of the Act. The omissions and ambiguities of the initial statute render it defective as not in conformity with the imperative requirements of the Act on Political Parties. Therefore, it cannot be considered that a valid founding of a political party has occurred and the request for registration has to be dismissed."

Upon the applicant party's appeal, on 9 December 1992 the Supreme Court upheld this decision on the same grounds and also stated that the fresh document submitted in the proceedings before it and entitled "founding protocol" was not a protocol from a general assembly and therefore did not constitute a valid approval of the amended statute.

The chairman of the applicant party submitted a petition for review (pregled po reda na nadzora) before a five member chamber of the Supreme Court. This was refused on 18 May 1994 as the statute of the party was not in conformity with the requirements for registration and the applicant party did not comply with the instructions of the courts as regards the rectification of the irregularities.

The chairman of the applicant party also wrote letters to various institutions complaining of the judicial decisions refusing registration. In response to one of the letters, the Clerk of the Parliament's President (Nachalnik na kabineta na Predsedatelia na Narodnoto sabranie) stated that the quantity of documents submitted by the applicant party and the fact that it had financial problems did not appear relevant for its registration.

In his letter of 15 August 1994 addressed to the Parliamentary Human Rights Committee the applicant party's chairman stated that he could not understand the judicial decisions. Thus each founding member had "put 3 - 4 signatures on every document" and therefore the new version of the statute had been approved. The courts wrongly required an approval by the general assembly of the party as Section 7 of the Act on Political Parties did not require the convention of a general assembly. The chairman concluded that the judges did not want to

register a royalist party as they were afraid for their jobs. He requested the Committee to instruct the courts to register the party.

Relevant domestic law

<Translation>

Section 7 and 8 of the Act on Political Parties read as follows:

"7. A political party shall be established at a founding meeting upon the agreement of at least 50 individuals eligible to vote. The founding meeting shall adopt the statute of the party and shall elect the leadership."

"8. (1) The statute of a political party shall state: its name, which shall distinguish the party from other organisations; its program aims and tasks; the rules for admission of new members and for terminating membership; the rights and obligations of members; the managing bodies; the symbols of the party; its financial sources; and the conditions and procedure for its winding up ... "

According to Section 1(3) of the Act on Political Parties any association can engage in "political activity" without registering as a political party. Under Section 41 (4) of the Act on Elections for Members of Parliament, Municipal Councils and Mayors only registered political parties can have a list of candidates in elections.

COMPLAINTS

The applicant party complains under Article 11 of the Convention that the authorities unlawfully and arbitrarily refused to register it. Thus the courts stated that the statute of the party had to be adopted by a duly convened general assembly, whereas under Section 7 of the Act on Political Parties only a founding meeting was necessary. The applicant party had submitted a "founding protocol" thereby approving the amended statute and therefore had complied with the law.

THE LAW

1. The applicant party complains of the allegedly unlawful and arbitrary refusal of the domestic courts to register it.

Article 11 (Art. 11) of the Convention, insofar as relevant, reads as follows:

"1. Everyone has the right to freedom of .. association with others ...

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society ... for the prevention of disorder ... [and] for the protection of the rights and freedoms of others."

The Commission recalls its case law according to which a refusal of the authorities to register an association does not necessarily involve an interference with its rights under Article 11 (Art. 11) of the Convention where the association is nevertheless free to continue its activities (No. 14233/88, Dec. 5.6.91, D.R. 70 p. 218, 236; and No. 18874/91, Dec. 12.1.94, D.R. 76 p. 44, 49).

The Commission notes that an unregistered association, such as the applicant in the present case, is authorised by law to engage in "political activity", but cannot participate in elections.

Furthermore, the Commission notes that the applicant party was

free at any time to rectify the procedural omissions by convening a general assembly for the approval of the amended statute. Such a formal requirement was neither arbitrary, nor an onerous obstacle. Moreover, the possibility for the applicant party to submit a fresh petition for registration, once it has complied with the pertinent requirements under the law, has remained open.

Therefore, the Commission does not find that the Bulgarian courts, when refusing the applicant party's petition for registration in the particular circumstances of the case, have interfered with its rights under Article 11 (Art. 11) of the Convention.

It follows that this complaint is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

2. Insofar as the applicant party may be understood as complaining under Article 6 (Art. 6) of the Convention of the alleged unfairness of the proceedings concerning its registration and insofar as the Commission is competent ratione temporis and materiae to examine this complaint, it finds that there is no indication that the applicant party was unable to put forward its point of view, that the courts were biased or that the proceedings were otherwise unfairly conducted. Moreover, the courts gave sufficient opportunities to the applicant party to rectify its omissions and even invited it ex officio to do so.

It follows that the remainder of the application is also manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

For these reasons, the Commission, unanimously,

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the First Chamber — President of the First Chamber

(M.F. BUQUICCHIO) — (C.L. ROZAKIS)